

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

CURTISS-WRIGHT CORPORATION
d/b/a Curtiss Wright Electro Mechanical
Corporation d/b/a Curtiss-Wright Steam and
Air Solutions,
STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants.

Case No. 2:25-cv-00405-RMG-MGB

**DEFENDANTS' REPLY TO PLAINTIFF'S OBJECTIONS TO
THE MAGISTRATE JUDGE'S REPORT AND RECOMMENDATION
THAT DEFENDANTS' MOTION FOR SANCTIONS BE GRANTED**

Defendants Curtiss-Wright Electro Mechanical Corp. d/b/a Curtiss-Wright Steam and Air Solutions, Stephanie Lanier, and Shane Sablitsky (collectively, "Defendants"), respectfully submit this reply to Plaintiff's Objections to the Magistrate Judge's Report and Recommendation that Defendants' Motion for Sanctions be Granted and that Plaintiff's case be dismissed with prejudice. Plaintiff's Objections do not identify any error or specifically object to any finding in the Report and Recommendation (ECF No. 309). Accordingly, the Report and Recommendation must be reviewed only for clear error and should be adopted in full.

Plaintiff makes three main points in her Objections: (1) providing a summary letter from her therapist should be enough, regardless of what the Court ordered her to produce; (2) Defendants' discovery requests were overbroad, intrusive, and harassing; and (3) Defendants have made false statements in their discovery responses. None of these arguments excuse her ongoing failure to comply with the Court's December 15 discovery order and none of these arguments

undermine the Magistrate Judge's recommendation that Plaintiff be sanctioned with dismissal. In fact, Plaintiff's Objections further evidence why dismissal is the most appropriate sanction in this case. Accordingly, the Court should overrule Plaintiff's Objections, adopt the Report and Recommendation in full, and dismiss Plaintiff's case with prejudice.

I. STANDARD OF REVIEW

Under 28 U.S.C. § 636(b)(1), the Court reviews de novo those portions of a report and recommendation to which a party makes specific objections. The Court may accept, reject, or modify, in whole or in part, the recommendation of the Magistrate Judge, or recommit the matter to the Magistrate Judge with instructions. 28 U.S.C. § 636(b)(1).

In the absence of specific objections, the Court reviews the Report for clear error. *See Diamond v. Colonial Life & Accident Ins. Co.*, 416 F.3d 310, 315 (4th Cir. 2005) (stating that “in the absence of a timely filed objection, a district court need not conduct a de novo review, but instead must ‘only satisfy itself that there is no clear error on the face of the record in order to accept the recommendation.’”) (quoting Fed. R. Civ. P. 72 advisory committee's note).

Plaintiff does not dispute the core facts or conclusions identified by the Magistrate Judge including the following: (1) the Court entered a discovery Order on December 15, 2025 (ECF No. 251); (2) the Order required Plaintiff to produce specific categories of discovery by January 30, 2026; (3) the Order expressly warned Plaintiff that failure to provide full and fair discovery into her emotional-distress-based claims would be treated as a waiver of those claims and that sanctions could follow; (4) Plaintiff understood what was required of her from the Order (ECF Nos. 311, 299, 294; 292-1); and (5) Plaintiff did not provide the ordered discovery. ECF No. 309 at 9-10, 22-24. Plaintiff's Objections do not cure, or otherwise address, those facts. Instead, Plaintiff's Objections attempt to justify her continued “resistance” to the Court's Order. Therefore, because

Plaintiff does not make specific objections to any material aspect of the Report and Recommendation, the Court should review the Report and Recommendation for clear error.

II. ARGUMENT

A. Plaintiff's Production of a Single Therapist Letter Does Not Satisfy Her Discovery Obligations or Comply with the Court's December 15 Order.

Plaintiff argues that she did not refuse discovery because she participated in discovery and later provided a clinical summary from her therapist. But Rule 37 focuses on compliance with the Court's Order, not on whether a party produced some materials of her own choosing. A single therapist summary letter did not satisfy Plaintiff's discovery obligations or comply with the Court's December 15 Order. Whether a therapist summary letter was sufficient discovery was one of the underlying issues that led to the December 15 Order. *See* ECF No. 251, p. 12-15, 22; *see generally* ECF Nos. 220, 228.

The Report and Recommendation recounts that the December 15 Order required production of multiple categories of discovery by January 30, 2026, and that after the Order, Plaintiff provided only a single YouTube video and screenshots of some text messages. (ECF No. 309 at 13, 22-23.) Defendants' Motion likewise explained that the ordered categories included, among other things, financial records, flash-drive documents, Naval Inspector General materials, and full and fair discovery concerning Plaintiff's emotional-distress-based claims. (ECF No. 292 at 2-7.) Plaintiff does not contend in her Objections that she produced those materials because she did not.

Instead, Plaintiff argues only that she provided a therapist's summary and objected to what she viewed as overreach. *See* ECF No. 311 at 2-3. Once the Court entered its December 15 Order, Plaintiff was not free to decide for herself that some narrower, self-selected production would suffice. The Court had already resolved the scope and proportionality issues and ordered Plaintiff

to either abandon her intentional infliction of emotional distress and emotional damages claims or provide Defendants full and fair discovery into those claims. (ECF No. 251 at 11-15.) Plaintiff elected to pursue those claims while still refusing to provide the ordered discovery. *See* ECF No. 272. That is noncompliance.

Plaintiff's related arguments about Defendants' subpoena to her therapist likewise do nothing to cure the violation. The sanctions recommendation does not rest on any finding related to compliance with a third-party subpoena. It rests on the undisputed fact that Plaintiff failed to obey the Court's December 15 discovery Order, ECF No. 251, which required Plaintiff herself to provide various categories of discovery and, if she wished to continue pursuing emotional distress-based claims, to provide Defendants full and fair discovery into those claims. (ECF No. 309 at 9-10.) Plaintiff cannot cure that noncompliance by pointing to a therapist summary letter that she chose to provide after discovery closed, knowing that it did not satisfy the Court's Order. *See* ECF No. 251 at 11-15.

Once the Court ruled, the issue was not whether Plaintiff believed a therapist summary should have been enough; the issue was whether Plaintiff complied with the Court's instructions. She did not. Plaintiff's obligations have been restated repeatedly, and Plaintiff has never claimed to be confused about what was required of her. Rather, Plaintiff continues to maintain that her "resistance" was justified because she believes the Court required too much. *See* ECF No. 311 at 2-3. But a party does not comply with a discovery order by producing less than what was ordered and then relabeling the shortfall as justified resistance. Plaintiff's therapist-summary argument therefore does nothing to undermine the Report and Recommendation. It reinforces the Magistrate Judge's finding that Plaintiff knowingly chose not to comply with the Court's Order.

B. Plaintiff's Complaints That Defendants' Discovery Was Overbroad, Intrusive, or Harassing Is an Attempt to Relitigate Issues the Court Already Resolved.

Plaintiff next argues that Defendants' discovery requests were overbroad, intrusive, and harassing, and that the Court's December 15 Order forced her into an improper choice. But those are not objections to the Report and Recommendation's sanctions analysis. They are simply renewed objections to the underlying discovery ruling. The Court already resolved the scope and proportionality of discovery in the December 15 Order. (ECF No. 251.) Once that Order was issued, the operative question was no longer whether Plaintiff believed the requests went too far; it was whether she complied.

The Report and Recommendation properly explains that sanctions are warranted because Plaintiff did not do so. It explains that the Court ordered Plaintiff to produce employment and financial records, social-media material related to the case, the documents contained on the flash drive Plaintiff submitted to the Court, and documents and communications relating to the complaints Plaintiff filed with the Office of the Naval Inspector General. (ECF No. 309 at 9-10.) Plaintiff's Objections do not specifically challenge those findings, nor do her Objections claim compliance. Instead, Plaintiff again asserts that her resistance was justified because she believed the discovery was too intrusive. That is not a defense to Rule 37 sanctions.

The Supreme Court has long held that court orders must be obeyed unless and until they are modified or set aside, and the Fourth Circuit has made the same point, affirming dismissal as a sanction against pro se plaintiffs who fail to comply with court orders. *Maness v. Myers*, 419 U.S. at 458-60; *Ballard v. Carlson*, 882 F.2d 93, 96 (4th Cir. 1989). Plaintiff's continued attempt to relitigate the December 15 Order therefore does not undermine the Report and Recommendation; it underscores why sanctions are necessary.

C. Plaintiff's Baseless Accusations That Defendants Made False Statements and Her Other Collateral Complaints Do Not Excuse Noncompliance and Further Confirm That Dismissal Is Warranted.

Plaintiff's remaining objections do not identify any error in the Report and Recommendation. Instead, she accuses Defendants of making false statements, disputes how Defendants characterized her federal-funding requests, complains that the Court did not meaningfully address her filings, and revisits pleading and retaliation issues. None of those collateral accusations excuse her failure to obey the Court's December 15 Order. The recommendation for sanctions is not based on a merits determination that Plaintiff lost a discovery dispute; it is based on Plaintiff's refusal to provide the discovery the Court ordered after repeated warning. Even if Plaintiff believed Defendants had misstated facts or that other issues should have been resolved differently, that did not authorize unilateral noncompliance. *See Maness*, 419 U.S. at 458-60.

Nor are Plaintiff's accusations accurate. In fact, Plaintiff's Objections go further and materially misstate the record to justify her noncompliance and reframe the discovery dispute now before the Court.

First, Plaintiff now asserts that her request regarding federal financial assistance was not limited to any specific federal agency. That is simply untrue and contradicted by Plaintiff's own filings. Plaintiff's Motion to Compel sought documents showing Defendants' receipt of federal financial assistance from the U.S. Navy, and her written discovery request was directed to documents between Curtiss-Wright and the U.S. Department of Defense or U.S. Navy reflecting such funding. *See* ECF Nos. 210, 210-1. In her Objections, Plaintiff includes an altered, or fabricated, quote presumably intended to mislead the Court to believe that her request sought all documents relating to any federal funding generally. This is an after-the-fact expansion of her request that is inconsistent with the actual discovery she served. *See* ECF Nos. 210, 210-1. It is not

a clarification—it is a misstatement designed to suggest that Defendants mischaracterized and improperly responded to her request when, in reality, they did not.

Second, Plaintiff again misrepresents the record regarding her purported compliance with discovery through a therapist “clinical summary” letter. The issue of whether such a letter satisfies Plaintiff’s discovery obligations has already been extensively briefed and decided. *See* ECF No. 251 at 11-15. The Court ordered Plaintiff to provide full and fair discovery into her emotional-distress claims by January 30, 2026. Plaintiff did not do so. Instead, more than a month after that deadline, she provided a letter dated March 6, 2026, which largely recited allegations from her Complaint. That document was both untimely and substantively insufficient.

Plaintiff nevertheless continues to claim that the letter satisfied her discovery obligations. She even sought leave to amend her Complaint to allege that the letter predated Defendants’ requests for her records, implying that Defendants pursued her medical file as a form of harassment despite already having all the requested information. The record disproves that account: Defendants sought Plaintiff’s records months earlier in ordinary discovery, and the letter, which in no way satisfies Plaintiff’s obligations, was not created until more than a month after the Court-ordered deadline expired. Plaintiff’s attempt to recast that late-created letter as timely compliance—and to tack on frivolous retaliation claims based on it—does not create a genuine factual dispute. It is an abusive litigation tactic with no bearing on the issue before the Court.

While Plaintiff’s misrepresentations in this case attempt to deflect from her lack of legal argument responding, or otherwise objecting to the Report and Recommendation, her blatant misrepresentations demonstrate precisely why the sanctions are appropriate. Courts have repeatedly held that misrepresentations, shifting positions, and attempts to rewrite the factual record during discovery support severe sanctions, including dismissal. *See Projects Mgmt. Co. v.*

DynCorp Int'l LLC, 734 F.3d 366, 373-74 (4th Cir. 2013) (affirming dismissal where party provided false discovery responses and withheld relevant documents); *Six v. Generations Fed. Credit Union*, 891 F.3d 508, 519-20 (4th Cir. 2018) (upholding sanctions where party engaged in continuing misrepresentations and attempted to distort the record); *Chambers v. NASCO, Inc.*, 501 U.S. 32, 44-46 (1991) (recognizing inherent authority to sanction bad-faith litigation conduct).

Plaintiff's latest actions are not isolated occurrences. As reflected in Defendants' prior filings, Plaintiff has repeatedly made knowingly untrue factual assertions throughout this litigation that are easily disproven by documents on the record, including: statements regarding Defendants' efforts to obtain evidence from the flash drive submitted to the Court, the number of depositions she had already taken, and whether she satisfied her obligation to confer before filing motions to compel. *See* ECF Nos. 213, 216, 216-1 (including representations that Plaintiff repeatedly informed Defendants that the complete materials on the flash drive were available upon formal request for inspection, while Plaintiff's email correspondence shows she refused to provide Defendants access to the flash drive submitted to the Court); ECF Nos. 214, 225, 230, 230-1, 230-2, 230-3, 230-4 (representing that Plaintiff had not taken ten depositions, despite Defendants' repeated advisements to the contrary, the record reflecting her tenth deposition, and Plaintiff's prior request for leave to exceed the ten-deposition limit after reaching it); ECF Nos. 105, 133, 139, 192 (admitting that Plaintiff included a false Rule 37(a)(1) meet-and-confer certification in a premature motion to compel). Each instance reflects the same pattern: Plaintiff advances an untrue narrative, often clearly contradicted by the record and her own filings, and then relies on that narrative to justify her own conduct and motion practice.

Taken together, these misstatements show that Plaintiff is not merely a pro se litigant struggling to understand her obligations; rather, she is actively trying to recast the record to justify

her noncompliance and to secure an unwarranted advantage. Plaintiff has extensively pursued sanctions against Defendants, with no factual basis, while extensively briefing the case law and rules for Rule 37 sanction. She now argues that there should be no consequence for her pattern of behavior because her resistance to the Court's authority is justified. That pattern supports the finding of bad faith and confirms that lesser sanctions would be ineffective. *See Anderson v. Found. for Advancement, Educ. & Emp. of Am. Indians*, 155 F.3d 500, 504 (4th Cir. 1998) (identifying bad faith, prejudice, and need for deterrence as factors supporting dismissal under Rule 37).

D. Plaintiff's Objections Affirm Bad Faith Because They Again Show That Plaintiff Believes She May Disregard Court Orders with Which She Disagrees.

The Magistrate Judge correctly found bad faith because Plaintiff repeatedly reasserted objections the Court had already rejected and made clear that she intended to comply only to the extent she subjectively believed the Court's Order was reasonable and correct. (ECF No. 309 at 19-20.) Her objections to the Report and Recommendation confirm that nothing has changed. Plaintiff does not say she misunderstood the December 15 Order. She does give a reason that she was unable to comply. She says her 'resistance' was justified because she believes the Court required too much. (ECF No. 311 at 2-3.) Plaintiff is deliberately choosing to substitute her judgment for the orders of the Court, which she cannot do.

That kind of conduct is the essence of bad faith under Rule 37. In *Mutual Federal Savings & Loan Assn' v. Richards & Associates, Inc.*, the Fourth Circuit explained that dismissal is appropriate where a party's conduct reflects a pattern of indifference and disrespect to the authority of the court. 872 F.2d 88, 92-93 (4th Cir. 1989). In *Anderson v. Foundation for Advancement, Education & Employment of American Indians*, the Fourth Circuit likewise affirmed severe sanctions where the noncomplying party stonewalled discovery despite court orders and warnings.

155 F.3d 500, 504-05 (4th Cir. 1998). That is the situation here. Even after the Court warned Plaintiff that her claims could be waived or dismissed if she failed to provide full and fair discovery (ECF No. 251 at 15), Plaintiff explicitly affirmed that she would continue to pursue her claims while withholding the discovery the Court ordered. *See* ECF No. 272, *Plaintiff's Reply, Clarification, and Record Preservation Regarding Order 251*.

Plaintiff's Objections also demonstrate why there is no reasonable basis to believe that future compliance can be secured through a lesser sanction. A party who says, in substance that she will not comply because the Court was wrong, and has used every responsive filing opportunity that she has had to make that point rather than address her sanctionable conduct, is not asking for another chance to comply; she is refusing to accept the Court's authority to decide the discovery dispute. Under these circumstances, the Magistrate Judge correctly concluded that lesser sanctions would not be effective.

E. The Report and Recommendation Correctly Found Substantial Prejudice, a Strong Need for Deterrence, and the Inadequacy of Lesser Sanctions.

Courts determining whether to terminate a case as a sanction consider the factors set forth in *Wilson v. Volkswagen of America, Inc.*, which are: (1) whether the noncomplying party acted in bad faith; (2) the amount of prejudice his noncompliance caused his adversary; (3) the need for deterrence of the particular sort of noncompliance; and (4) the effectiveness of less drastic sanctions. 561 F.2d 494 (4th Cir. 1977) (the "*Wilson* factors"). For the reasons set forth above, Plaintiff acted in bad faith, and the remaining *Wilson* factors also weigh in favor of adopting the Report and Recommendation. First, the prejudice to Defendants is obvious. Defendants cannot fairly evaluate or defend against claims when Plaintiff withholds the very discovery that would show the factual basis, scope, and value of her claims. *See Poston v. Lower Florence Cnty. Hosp. Dist.*, 2021 U.S. Dist. LEXIS 106748, at *7 (D.S.C. June 7, 2021) ("A defendant cannot be

expected to defend a case where the person bringing the action refuses to participate in the discovery process.”). Here, the prejudice is even more acute because discovery is closed, the Court already warned that no further extensions would be granted, and Plaintiff still, facing the dismissal of her case, insists that the discovery she withheld will not be provided.

Second, there is a substantial need for deterrence. The Supreme Court has emphasized that dismissal under Rule 37 must remain available not merely to penalize the noncomplying litigant, but also to deter comparable misconduct by others. *Nat’l Hockey League v. Metro. Hockey Club, Inc.*, 427 U.S. 639, 642-43 (1976). The Fourth Circuit has likewise reserved the most severe sanctions for those flagrant cases in which a party’s conduct reflects bad faith and callous disregard for the authority of the court. *Wilson v. Volkswagen of Am., Inc.*, 561 F.2d 494, 503-05 (4th Cir. 1977); *Mutual Federal*, 872 F.2d at 92-93. Plaintiff’s Objections—filed after a recommendation of full dismissal of her suit—still maintain that her noncompliance was justified. (ECF No. 311 at 2-3.) That ongoing defiance of the Court’s authority demonstrates why deterrence is necessary here.

Third, lesser sanctions would not be effective. Plaintiff was expressly warned that continued noncompliance could result in dismissal of her claims, ECF No. 251 at 15, yet she still refused to comply. Plaintiff is unquestionably aware that withholding discovery can lead to dismissal — just weeks before the December 15 Order she defied, Plaintiff herself sought the very same sanction against Defendants. *See* ECF No. 235. In *Ballard*, the Fourth Circuit held that where a party has been expressly warned of dismissal, the District Court may have ‘little alternative’ to that sanction because any other course would place the Court’s credibility in doubt and invite abuse. 882 F.2d at 95-96. The same is true here. Even in the face of dismissal, Plaintiff’s Objections show that she still has not accepted the Court’s authority. This Court therefore has

every reason to conclude that anything short of dismissal would simply lead to more motion practice and more disregard of Court orders.

Finally, Plaintiff's pro se status does not change the outcome. The Fourth Circuit has made clear that pro se litigants must comply with Court orders, *Ballard*, 882 F.2d at 96, and courts in this District have dismissed pro se cases where plaintiffs ignore discovery obligations after warning. *See, e.g., Benton v. Stanley Black & Decker*, 2025 U.S. Dist. LEXIS 187199 (D.S.C. June 9, 2025), adopted, 2025 U.S. Dist. LEXIS 150305 (D.S.C. Aug. 5, 2025); *Poston*, 2021 U.S. Dist. LEXIS 106748, at *7-8. As Defendants argued previously, Plaintiff cannot use pro se status as both sword and shield—pursuing extensive motion practice against Defendants while avoiding the consequences of her own deliberate noncompliance.

III. CONCLUSION

In sum, Plaintiff's Objections remove any doubt as to whether Plaintiff knowingly and willfully violated the Court's December 15 Order. Plaintiff was given a clear Order, clear deadlines, and clear warnings. She did not comply. She now says that her noncompliance was justified because she believed the Court was wrong and the Order went too far. *See* ECF No. 311 at 2-3. That position confirms the Magistrate Judge's central conclusions: Plaintiff acted in bad faith, Defendants have been prejudiced, deterrence is needed, and lesser sanctions will not work. Under Rule 37 and the authorities cited above, dismissal with prejudice is warranted. Should the Court not impose dismissal as a sanction in the face of such obstinate refusal to comply with this Court's Orders, there is no reason to believe Plaintiff will comply with any order of this Court with which she does not agree.

For these reasons, Defendants respectfully request that the Court overrule Plaintiff's Objections, adopt the Report and Recommendation in full, and dismiss this action with prejudice.

Respectfully submitted this 22nd day of April, 2026.

s/T. Chase Samples

T. Chase Samples (Fed. I.D. No. 10824)

Joseph V. Valenza (Fed. I.D. No. 14416)

Email: Chase.Samples@jacksonlewis.com

Email: Joseph.Valenza@jacksonlewis.com

JACKSON LEWIS P.C.

15 South Main Street, Suite 700

Greenville, SC 29601

Phone: 864-232-7000

ATTORNEYS FOR DEFENDANTS

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CERTIFICATE OF SERVICE

The undersigned certifies that on April 22, 2026, a copy of the foregoing **DEFENDANTS' REPLY TO NELSON'S OBJECTIONS TO REPORT AND RECOMMENDATION**, has been served upon the following via email and United States Mail, postage prepaid and addressed to:

Debra Nelson

Pro Se Plaintiff

s/T. Chase Samples

T. Chase Samples